

Eli Lilly and Company v. Cipla Ltd. et al

Plaintiff:	Eli Lilly and Company
Defendant:	Cipla Ltd. and Cipla USA Inc.
Case Number:	1:2026cv00691
Filed:	June 12, 2026
Court:	U.S. District Court for the District of Delaware
Presiding Judge:	Colm F Connolly
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 1 Patent Infringement
Jury Demanded By:	None



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Docket Report

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Date Filed	Document Text
June 24, 2026	SO ORDERED, re #10 STIPULATION TO EXTEND TIME for Cipla to Answer, Move, or Otherwise Respond to the Complaint to September 4, 2026, filed by Cipla Ltd., Cipla USA Inc. Reset Answer Deadlines: Cipla Ltd. answer due 9/4/2026; Cipla USA Inc. answer due 9/4/2026. Ordered by Judge Colm F. Connolly on 6/24/2026. (kmd)
June 23, 2026	Filing 10 STIPULATION TO EXTEND TIME for Cipla to Answer, Move, or Otherwise Respond to the Complaint to September 4, 2026 - filed by Cipla Ltd., Cipla USA Inc.. (Dorsney, Kenneth)
June 17, 2026	Filing 9 SUMMONS Returned Executed by Eli Lilly and Company.Cipla USA Inc. served on 6/15/2026, answer due 7/6/2026. (Joyce, Alexandra)
June 17, 2026	Filing 8 DECLARATION of Service of Cipla Ltd. by Eli Lilly and Company. (Attachments: #1 Exhibit A-B)(Joyce, Alexandra)
June 17,	Filing 7 JUDGE COLM F. CONNOLLY STANDING ORDERS. Parties shall comply with all applicable standing orders and consult the Court's website for updates. (mws)

Date Filed	Document Text
2026	
June 17, 2026	Case Assigned to Judge Colm F. Connolly. Please include the initials of the Judge (CFC) after the case number on all documents filed. (alb)
June 12, 2026	Filing 6 Summons Issued as to Cipla Ltd. on 6/12/2026; Cipla USA Inc. on 6/12/2026. (Attachments: #1 Summons Issued)(mrr)
June 12, 2026	Filing 5 Disclosure Statement pursuant to Rule 7.1: No Parents or Affiliates Listed filed by Eli Lilly and Company. (mrr)
June 12, 2026	Filing 4 Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 7,855,211. (mrr)
June 12, 2026	Filing 3 Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: May 7, 2026. Date of Expiration of Patent: September 28, 2031 (U.S. Patent No. 7,855,211).Thirty Month Stay Deadline: 11/7/2028. (mrr)
June 12, 2026	Filing 2 Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (mrr)
June 12, 2026	Filing 1 COMPLAINT for Patent Infringement against Cipla Ltd. and Cipla USA Inc. (Filing fee \$ 405, receipt number ADEDC-4991597) - filed by Eli Lilly and Company. (Attachments: #1 Exhibit 1, #2 Civil Cover Sheet)(mrr)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: Eli Lilly and Company (Indiana)

Defendant: Cipla Ltd. (India); Cipla USA Inc. (Delaware)

Plaintiff's Counsel: [McCarter & English, LLP](#)

Case Identification: [1:26-cv-00691](#), D. Del., 06/12/2026

Venue Allegations: Plaintiff alleges venue is proper as to Cipla USA Inc. because it is incorporated in Delaware, and as to Cipla Ltd. because it is a foreign corporation subject to suit in any U.S. judicial district. The complaint further notes that both entities have previously litigated in the District of Delaware and have not contested venue.

Core Dispute: Plaintiff alleges that Defendants' submission of an Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiff's cancer drug Verzenio® (abemaciclib) constitutes an act of infringement of a patent covering the drug's active chemical compound.

Technical Context: The technology involves small molecule protein kinase inhibitors, specifically CDK4/6 inhibitors, which are used in oncology to treat certain types of breast cancer by disrupting cell cycle progression.

Key Procedural History: This is a patent infringement action filed under the Hatch-Waxman Act. The suit was triggered by Defendants' submission of an ANDA to the FDA seeking approval to market a generic drug. Plaintiff received a Paragraph IV certification letter from Defendants dated May 6, 2026, and filed this complaint within the 45-day statutory window, which triggers an automatic 30-month stay of FDA approval for the generic product.

Case Timeline

Date	Event
2008-12-22	'211 Patent Priority Date
2010-12-21	'211 Patent Issue Date
2017-09-28	FDA first approved Verzenio® (abemaciclib)
2021-10-12	FDA approved Verzenio® for additional indications
2026-05-06	Date of Cipla Ltd.'s Paragraph IV letter
2026-05-07	Lilly received Cipla's Paragraph IV letter
2026-06-12	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 7,855,211 - "Protein Kinase Inhibitors"

Patent Identification: U.S. Patent No. [7,855,211](#), titled "Protein Kinase Inhibitors," issued on December 21, 2010.

The Invention Explained

Problem Addressed: The patent's background section describes the central role of Cyclin-dependent kinases (CDKs), particularly CDK4 and CDK6, in regulating the cell cycle ['211 Patent, col. 1:5-1:12](#) Because this regulatory pathway is frequently altered in human tumors, there was a need for therapeutic compounds that could inhibit CDK4/6 activity to prevent cancer cell division ['211 Patent, col. 1:17-1:22](#) The patent also identifies a need for new inhibitors with improved

properties such as potency, selectivity, aqueous solubility, and oral availability compared to then-existing compounds '211 Patent, col. 2:41-2:68

❑ **The Patented Solution:** The patent discloses a new class of chemical compounds, defined by a general structure (Formula I), that function as inhibitors of CDK4 and CDK6 '211 Patent, abstract By inhibiting these kinases, the compounds prevent the phosphorylation of the retinoblastoma protein (pRb), which in turn halts the cell cycle at the G1 restriction point and prevents the proliferation of cancer cells '211 Patent, col. 1:13-1:22

❑ **Technical Importance:** The development of specific, orally available small molecule inhibitors targeting the CDK4/6 pathway represented a significant advance in targeted cancer therapy, offering a new non-chemotherapeutic mechanism to control proliferation in certain cancers '211 Patent, col. 5:1-5:9

Key Claims at a Glance

❑ The complaint states that independent claims 1, 14, 17, and 21 are among the patent's 23 claims Compl. ¶34 The infringement analysis below focuses on independent claim 1 as a representative claim.

❑ **Independent Claim 1** claims:

❑ A compound of a specific chemical structure (formula I), or a pharmaceutically acceptable salt thereof.

❑ The formula includes a series of variable substituent groups, including R1, R2, R3, R4, R5, Q, W, and Y, which define the scope of the claimed chemical genus.

❑ The complaint alleges that Defendants' Paragraph IV letter does not contest infringement of claims 1-5, 7-12, and 14-23 of the '211 Patent Compl. ¶37

III. The Accused Instrumentality

Product Identification

❑ The accused instrumentalities are Defendants' proposed generic abemaciclib tablets, referred to as the "Cipla ANDA Products," in 50 mg, 100 mg, 150 mg, and 200 mg dosage strengths Compl. ¶10

Functionality and Market Context

❑ The Cipla ANDA Products contain the active pharmaceutical ingredient abemaciclib, which is a CDK4/6 inhibitor used to treat certain types of breast cancer Compl. ¶30 Compl. ¶31 Compl. ¶36 The complaint alleges that these proposed generic products are bioequivalent to Lilly's Verzenio® tablets and are intended to be sold with the same method of administration and dosage form Compl. ¶42 The complaint includes a visual representation of the chemical structure for abemaciclib, identifying it as the compound claimed in claim 12 of the '211 Patent Compl. ¶35

IV. Analysis of Infringement Allegations

The complaint alleges that Defendants' proposed product literally infringes the '211 Patent because the active ingredient, abemaciclib, is a compound that falls within the scope of the patent's claims.

'211 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A compound of formula (I)... wherein R1 is C3-C5 alkyl, C3-C5 cycloalkyl or cyclopropyl-methyl	The accused products contain abemaciclib, which is alleged to be a compound covered by the patent. Compl. ¶36 Abemaciclib's structure includes an isopropyl group at the position corresponding to R1, which is a C3 alkyl.	¶36	col. 3:45-3:48
R2 and R3 are H or fluorine, wherein at least one of R2 or R3 is fluorine	Abemaciclib's structure includes two fluorine atoms at the positions corresponding to R2 and R3.	¶36	col. 3:49-3:52
R4 is H or CH3	Abemaciclib's structure includes a methyl group at the position corresponding to R4.	¶36	col. 3:53-3:55
Q is CH2, O, S or a direct bond	Abemaciclib's structure includes a CH2 (methylene) group at the position corresponding to Q.	¶36	col. 3:62-3:63
W and Y are C or N, wherein at least one of W or Y is N...	Abemaciclib's structure includes nitrogen atoms at the positions corresponding to W and Y.	¶36	col. 3:64-3:66
or a pharmaceutically acceptable salt thereof	The Cipla ANDA seeks approval for abemaciclib tablets, which contain the active ingredient as the compound itself or as a pharmaceutically acceptable salt. Compl. ¶35	¶36	col. 3:28-3:44

Identified Points of Contention:

Identity Question: The core of the infringement case rests on the chemical identity of the active ingredient in the Cipla ANDA Products. The complaint alleges the product "contains abemaciclib" and that abemaciclib is a compound covered by the patent's claims. Compl. ¶36 The complaint's characterization of Defendants' Paragraph IV letter suggests that infringement of the primary compound claims is not contested. Compl. ¶37 This raises the question of whether the dispute will center on patent validity rather than non-infringement.

Technical Question: While the complaint does not provide details, a potential point of contention in chemical patent cases can involve the specific polymorphic form or salt version of

the active ingredient. The court may need to consider whether the exact form used by Cipla, including any impurities, falls within the literal scope of the asserted claims.

V. Key Claim Terms for Construction

❑ **The Term:** "a pharmaceutically acceptable salt thereof"

❑ **Context and Importance:** In pharmaceutical patent litigation, the definition of this term is frequently a key issue. Generic manufacturers may attempt to design around a patent by using a different salt form of the active ingredient. The outcome of the infringement analysis could depend on whether the specific salt form in Cipla's product, if different from Lilly's, is considered "pharmaceutically acceptable" within the meaning of the claim.

❑ **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** The patent specification states that the claimed compounds are amines "and accordingly react with any of a number of inorganic and organic acids to form pharmaceutically acceptable acid addition salts" '211 Patent, col. 3:31-3:35 This language, along with references to standard methodologies, may support a broad interpretation that includes any salt form that is safe and effective for administration.

❑ **Evidence for a Narrower Interpretation:** The specification also states that "The hydrochloride and mesylate salts are preferred. The mesylate salt is especially preferred" '211 Patent, col. 3:44-3:46 A party seeking a narrower construction might argue that the patent's focus on specific preferred embodiments implies that less common or unlisted salts might not be "acceptable" as contemplated by the inventors, although this is often a difficult position to maintain if the salt meets general pharmaceutical standards.

VI. Other Allegations

❑ **Indirect Infringement:** The complaint alleges induced infringement, stating that Defendants know and intend for healthcare professionals and patients to use the Cipla ANDA Products according to the instructions on the proposed label, which would constitute an infringing use Compl. ¶51 The complaint also alleges contributory infringement on the grounds that abemaciclib is not a staple article of commerce and is especially made for an infringing use Compl. ¶52

❑ **Willful Infringement:** The complaint alleges that Defendants have had knowledge of the '211 Patent at least since the date of their Paragraph IV letter, May 6, 2026 Compl. ¶48 Plaintiff also requests a judgment that the case is "exceptional" under 35 U.S.C. § 285, which could entitle it to an award of attorneys' fees Compl. ¶54 Compl. Prayer for Relief ¶b

VII. Analyst's Conclusion: Key Questions for the Case

The complaint frames this dispute as a straightforward case of patent infringement under the Hatch-Waxman Act. Based on the provided documents, the litigation will likely revolve around the following key questions:

□A primary issue will likely be one of **patent validity**: As the complaint alleges that Defendants do not contest infringement of the core compound claims, will Defendants be able to prove by clear and convincing evidence that the asserted claims of the '211 Patent are invalid, for example, on grounds of obviousness over prior art kinase inhibitors or for lack of written description?

□A secondary question may be one of **definitional scope**: If Defendants' product utilizes a different salt or polymorphic form of abemaciclib than that used in Verzenio®, the court may need to determine whether that specific form falls within the scope of the term "a pharmaceutically acceptable salt thereof" as it would have been understood by a person of ordinary skill in the art.

□A final question relates to **indirect infringement**: Will the instructions for use on the proposed label for the Cipla ANDA Products inevitably direct physicians and patients to use the generic drug in a manner that infringes any valid and asserted method-of-use claims in the '211 Patent?

Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 1 of 13 PageID #: 1 IN THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF DELAWARE ELI LILLY AND COMPANY, Plaintiff, v. CIPLA LTD. and CIPLA USA INC., Defendants.)))))))))) C.A. No. _____ COMPLAINT FOR PATENT INFRINGEMENT Plaintiff Eli Lilly and Company by its undersigned attorneys, for its Complaint against Cipla Ltd. and Cipla USA Inc., hereby alleges as follows: NATURE OF THE ACTION 1. This is an action for patent infringement arising under the Food and Drug Laws and Patent Laws of the United States, Titles 21 and 35 of the United States Code, respectively, arising from Cipla Ltd.'s submission of an Abbreviated New Drug Application ("ANDA") to the Food and Drug Administration ("FDA") seeking approval to manufacture and sell a generic version of Lilly's Verzenio® tablets prior to the expiration of United States Patent No. 7,855,211. PARTIES 2. Plaintiff Eli Lilly and Company ("Lilly" or "Plaintiff") is a corporation organized and existing under the laws of the State of Indiana, having a principal place of business at Lilly Corporate Center, Indianapolis, Indiana 46285. Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 2 of 13 PageID #: 2 3. On information and belief, Defendant Cipla Ltd. ("Cipla Ltd.") is a corporation organized and existing under the laws of India having a principal place of business at Cipla House, Peninsula Business Park, Ganpatrao Kadam Marg, Lower Parel, Mumbai 400013, India. 4. On information and belief, Defendant Cipla USA Inc. ("Cipla USA") is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 10 Independence Boulevard, Suite 300, Warren, New Jersey 07059. 5. Cipla Ltd. and Cipla USA are collectively referred to herein as "Defendants." 6. On information and belief, Cipla USA is a wholly owned subsidiary of Cipla Ltd. and is under the direction and control of Cipla Ltd. 7. On information and belief, Cipla Ltd. is in the business of, among other things, developing, preparing, manufacturing, selling, marketing, and distributing generic drugs, including distributing, selling, and marketing generic drugs throughout the United States, including within the State of Delaware, through its own actions and through the actions of its partners, agents, and subsidiaries, including U.S. agent Cipla USA, from which Cipla Ltd. derives a substantial portion of its revenue. 8. On information and belief, Cipla Ltd. is listed as the applicant of ANDA No. 221201 ("Cipla ANDA") and has sent notice to Lilly stating that Cipla Ltd. included a certification in the Cipla ANDA, pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV). 9. On

information and belief, Cipla USA is the U.S. agent for Cipla Ltd. in connection with the Cipla ANDA. 10. On information and belief, Cipla USA acted in concert with Cipla Ltd. to prepare and submit the Cipla ANDA for 50 mg, 100 mg, 150 mg, and 200 mg abemaciclib tablets (“Cipla 2 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 3 of 13 PageID #: 3 ANDA Products”), which was done at the direction and control of, and for the direct benefit of, Cipla Ltd. 11. On information and belief, following FDA approval of the Cipla ANDA, Cipla Ltd., through its own actions and through the actions of its partners, agents and subsidiaries, including Cipla USA, will manufacture, supply, market, and sell the approved generic products throughout the United States, including Delaware. JURISDICTION AND VENUE 12. This action arises under the patent laws of the United States, 35 U.S.C. §§ 100 et seq., generally, and 35 U.S.C. § 271(e)(2) and §§ 271(a), (b), and/or (c), specifically, and this Court has jurisdiction over the subject matter of this action under 28 U.S.C. §§ 1331 and 1338(a). 13. Venue is proper in this Court as to Cipla Ltd. because, among other things, Cipla Ltd. is a foreign corporation not residing in any United States district and may be sued in any judicial district. 28 U.S.C. § 1391(b), (c); see also 28 U.S.C. § 1400(b). 14. Cipla Ltd. has been sued in this district previously in Hatch-Waxman patent infringement disputes and has not contested personal jurisdiction or venue in one or more cases. See, e.g., Sumitomo Pharma Switzerland GmbH et al. v. Cipla Limited et al., C.A. No. 25-312 (D. Del); Astellas Pharma Inc. et al. v. Cipla Limited et al., C.A. No. 24-1333 (D. Del); and Acerta Pharma BV et al. v. Cipla Limited et al., C.A. No. 24-587 (D. Del). On information and belief, Cipla Ltd. has also affirmatively invoked this Court’s jurisdiction by asserting counterclaims in cases that it has litigated in Delaware. For example, Cipla Ltd. asserted counterclaims in the cases listed above. 15. Venue is proper in this Court as to Cipla USA because, among other things, on information and belief, Cipla USA is incorporated in the State of Delaware and therefore “resides” 3 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 4 of 13 PageID #: 4 in this judicial district and/or has committed acts of infringement in this district and has a regular and established place of business in this district. 28 U.S.C. § 1400(b). 16. Cipla USA has been sued in this district previously in Hatch-Waxman patent infringement disputes and has not contested personal jurisdiction or venue in one or more cases. See, e.g., Sumitomo Pharma Switzerland GmbH et al. v. Cipla Limited et al., C.A. No. 25-312 (D. Del); Astellas Pharma Inc. et al. v. Cipla Limited et al., C.A. No. 24-1333 (D. Del); and Acerta Pharma BV et al. v. Cipla Limited et al., C.A. No. 24-587 (D. Del). On information and belief, Cipla USA has also affirmatively invoked this Court’s jurisdiction by asserting counterclaims in cases that it has litigated in Delaware. For example, Cipla USA asserted counterclaims in the cases listed above. 17. Venue is further proper in this Court as to Defendants because, among other things, Defendants have committed or aided, abetted, contributed to, and/or participated in the commission of, acts of infringement of the asserted patent that will lead to foreseeable harm and injury to Lilly by filing the Cipla ANDA with the intention of seeking to market the Cipla ANDA Products nationwide, including within the State of Delaware. See 28 U.S.C. § 1400(b). 18. PERSONAL JURISDICTION OVER CIPLA LTD. Lilly realleges paragraphs 1–17 as if fully set forth herein. 19. On information and belief, Cipla Ltd. develops, manufactures, and/or distributes generic drugs for sale and use throughout the United States, including in this judicial district. 20. This Court has personal jurisdiction over Cipla Ltd. because, among other things, Cipla Ltd., on information and belief, intends to market, sell, and/or distribute the Cipla ANDA Products to residents of this State upon approval of the Cipla ANDA, either directly or through at least one of its partners or wholly owned subsidiaries or agents, including Cipla USA. Cipla Ltd.’s 4 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 5 of 13 PageID #: 5 intent to sell the Cipla ANDA Products here is sufficient to support a finding of

specific personal jurisdiction. See *Acorda Therapeutics Inc. v. Mylan Pharms. Inc.*, 817 F.3d 755, 762–63 (Fed. Cir. 2016). Cipla Ltd. further makes its generic drug products available in this State and enjoys substantial income from sales of its generic drug products in this State. 21. Additionally, on information and belief, Cipla Ltd. has previously consented to this Court’s jurisdiction and has availed itself of the protections afforded by the Court by asserting counterclaims against plaintiffs in this judicial district. See, e.g., *Sumitomo Pharma Switzerland GmbH et al. v. Cipla Limited et al.*, C.A. No. 25-312 (D. Del); *Astellas Pharma Inc. et al. v. Cipla Limited et al.*, C.A. No. 24-1333 (D. Del); and *Acerta Pharma BV et al. v. Cipla Limited et al.*, C.A. No. 24-587 (D. Del). 22. Alternatively, to the extent the above facts do not establish personal jurisdiction over Cipla Ltd., this Court may exercise jurisdiction over Cipla Ltd. under Federal Rule of Civil Procedure 4(k)(2) because: (a) Lilly’s claim arises under federal law; (b) Cipla Ltd. would be a foreign defendant not subject to personal jurisdiction in the courts of any State; and (c) Cipla Ltd. has sufficient contacts with the United States as a whole, including, but not limited to, preparing and filing ANDAs with the FDA, marketing its drug product candidates, and manufacturing generic drug products that will be distributed throughout the United States, such that this Court’s exercise of jurisdiction over Cipla Ltd. satisfies due process, and is consistent with the United States Constitution and Laws. 23. Upon information and belief, if the Cipla ANDA is approved, the Cipla ANDA Products will be marketed and distributed by Cipla Ltd., either directly or through at least one of its partners or wholly owned subsidiaries or agents, including Cipla USA, in the State of Delaware, 5 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 6 of 13 PageID #: 6 prescribed by physicians practicing in the State of Delaware, dispensed by pharmacies located within the State of Delaware, and used by patients in the State of Delaware. 24. PERSONAL JURISDICTION OVER CIPLA USA Lilly realleges paragraphs 1–23 as if fully set forth herein. 25. On information and belief, Cipla USA develops, manufactures, and/or distributes generic drugs for sale and use throughout the United States, including in this judicial district. 26. This Court has personal jurisdiction over Cipla USA because, among other things, Cipla USA, on information and belief: (1) is incorporated under the laws of the State of Delaware; (2) intends to market, sell, or distribute the Cipla ANDA Products to residents of this State; (3) makes its generic drug products available in this State; and (4) enjoys substantial income from its generic drug products in this State. 27. Additionally, on information and belief, Cipla USA has previously consented to this Court’s jurisdiction and has availed itself of the protections afforded by the Court by asserting counterclaims against plaintiffs in this judicial district. See, e.g., *Sumitomo Pharma Switzerland GmbH et al. v. Cipla Limited et al.*, C.A. No. 25-312 (D. Del); *Astellas Pharma Inc. et al. v. Cipla Limited et al.*, C.A. No. 24-1333 (D. Del); and *Acerta Pharma BV et al. v. Cipla Limited et al.*, C.A. No. 24-587 (D. Del). 28. Upon information and belief, if the Cipla ANDA is approved, the Cipla ANDA Products will be marketed and distributed by Cipla Ltd., either directly or through at least one of its partners or wholly owned subsidiaries or agents, including Cipla USA, in the State of Delaware, prescribed by physicians practicing in the State of Delaware, dispensed by pharmacies located within the State of Delaware, and used by patients in the State of Delaware. 6 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 7 of 13 PageID #: 7 BACKGROUND U.S. PATENT NO. 7,855,211 29. On December 21, 2010, the United States Patent and Trademark Office (“USPTO”) duly and legally issued United States Patent No. 7,855,211 (“’211 Patent”), titled “Protein Kinase Inhibitors.” The inventors of the patented invention are David A. Coates, Lawrence Mark Gelbert, John M. Knobloch, Alfonso De Dios Magana, Ana De Prado Gonzalez, Miriam Filadelfa Del Prado Catalina, Maria Cristina Garcia Paredes, Eva Maria Martin De La Nava, Maria Dolores Martin Ortega Finger, Jose Antonio Martinez Perez, Ana Isabel Mateo Herranz, Carlos Perez Martinez, and Concepcion Sanchez

Martinez. A true and correct copy of the '211 patent is attached as Exhibit 1. The '211 patent is assigned to Lilly. VERZENIO® TABLETS 30. Lilly is the holder of New Drug Application ("NDA") No. 208716 for Verzenio® tablets, available in 50 mg, 100 mg, 150 mg, and 200 mg strengths, which contain the active ingredient abemaciclib. 31. On September 28, 2017, Verzenio® was approved by the FDA for use in combination with fulvestrant for the treatment of women with hormone receptor (HR)-positive, human epidermal growth factor receptor 2 (HER2)-negative advanced or metastatic breast cancer with disease progression following endocrine therapy and for use as a monotherapy for the treatment of adult patients with HR-positive, HER2-negative advanced or metastatic breast cancer with disease progression following endocrine therapy and prior chemotherapy in the metastatic setting. Verzenio® was the first CDK4/6 inhibitor approved by the FDA as a stand-alone treatment. On October 12, 2021, Verzenio® was approved by the FDA for additional patient populations and indications, including for use in combination with endocrine therapy (tamoxifen or an aromatase inhibitor) for the adjuvant treatment of adult patients with hormone receptor (HR)- 7 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 8 of 13 PageID #: 8 positive, human epidermal growth factor receptor 2 (HER2)-negative, node-positive, early breast cancer at high risk of recurrence and a Ki-67 score $\geq 20\%$ as determined by an FDA approved test. 32. Pursuant to 21 U.S.C. § 355(b)(1), and attendant FDA regulations, the '211 Patent is listed in the Orange Book with respect to Verzenio®. 33. The '211 Patent covers Verzenio® tablets and their use. ACTS GIVING RISE TO THE ACTION 34. 21. 35. Provided herein as an example is claim 12 of the '211 Patent, which claims a compound with the structure: The '211 Patent issued with 23 claims, including independent claims 1, 14, 17, and or a pharmaceutically acceptable salt thereof. 36. On information and belief, Cipla Ltd. seeks FDA approval for the Cipla ANDA, which contains abemaciclib as an active ingredient. Abemaciclib is a compound of the formula claimed by claim 12 of the '211 Patent and is covered by one or more claims of the '211 Patent. 8 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 9 of 13 PageID #: 9 37. On May 7, 2026, Lilly received a letter from Cipla Ltd. dated May 6, 2026, stating that Cipla Ltd. had included a certification in the Cipla ANDA, pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV), that, inter alia, claims 6 and 13 of the '211 Patent will not be infringed by the commercial manufacture, use, sale, offer to sell or importation into the United States of the Cipla ANDA Products. Cipla Ltd.'s Paragraph IV letter dated May 6, 2026 does not contest infringement of the other 21 claims of the '211 Patent, including claims 1–5, 7–12, and 14–23. 38. On information and belief, Defendants intend to engage in the commercial manufacture, use, offer for sale, and/or sale of the Cipla ANDA Products prior to the expiration of the '211 Patent. 39. Therefore, on information and belief, the Cipla ANDA Products would directly and literally infringe one or more claims of the '211 Patent. COUNT I—INFRINGEMENT OF THE '211 PATENT 40. Lilly realleges paragraphs 1–39 as if fully set forth herein. 41. On information and belief, Cipla Ltd. submitted the Cipla ANDA to the FDA, pursuant to 21 U.S.C. § 355(j), seeking approval to market the Cipla ANDA Products. 42. On information and belief, by filing its ANDA, Cipla Ltd. has represented to the FDA that the Cipla ANDA Products contain abemaciclib and are bioequivalent to Verzenio®. On information and belief, by filing its ANDA, Cipla Ltd. has also represented to the FDA that the Cipla ANDA Products would have the same method of administration and dosage form as Verzenio®. 43. Because abemaciclib and/or its use is covered by one or more claims of the '211 Patent, Defendants' manufacture, use, offer to sell, sale, and/or importation of the Cipla ANDA Products infringe one or more claims of the '211 Patent. 9 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 10 of 13 PageID #: 10 44. Under the Hatch-Waxman Act, an owner of a patented drug must file an action in federal court

within 45 days of receiving a Paragraph IV letter to receive certain benefits under the Act, including a stay of approval of the generic drug for 30 months during the pendency of litigation, as appropriate. 21 U.S.C. § 355(j)(5)(B)(iii). Cipla Ltd.'s Paragraph IV letter is dated May 6, 2026, and Lilly received this letter on May 7, 2026. Accordingly, Lilly has filed this action within the 45-day notice period. 45. On information and belief, Defendants have infringed at least one claim of the '211 Patent, pursuant to 35 U.S.C. § 271(e), by submitting, or causing to be submitted the Cipla ANDA—which, on information and belief, permits Cipla ANDA Products to contain abemaciclib—by which Cipla Ltd. seeks approval from the FDA to engage in the manufacture, use, offer to sell, sale, or importation of the Cipla ANDA Products prior to the expiration of the '211 Patent. See *Sunovion Pharms., Inc. v. Teva Pharms. USA, Inc.*, 731 F.3d 1271, 1278 (Fed. Cir. 2013). 46. On information and belief, Defendants intend to manufacture, use, offer to sell, or sell in the United States or to import into the United States, the Cipla ANDA Products if the FDA approves the Cipla ANDA. Accordingly, an actual and immediate controversy exists regarding Defendants' infringement of the '211 Patent under 35 U.S.C. §§ 271(a), (b) and/or (c). 47. Defendants' manufacture, use, offer to sell, or sale of the Cipla ANDA Products in the United States or importation of the Cipla ANDA Products into the United States during the term of the '211 Patent would further infringe, literally or under the doctrine of equivalents, at least one claim of the '211 Patent under 35 U.S.C. § 271(a). 48. On information and belief, Defendants have had knowledge of the '211 Patent at least since May 6, 2026, and by Cipla Ltd.'s representations in its Paragraph IV letter, Defendants 10 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 11 of 13 PageID #: 11 know or should know that the manufacture, use, offer to sell, or sale of the Cipla ANDA Products in the United States or importation of the Cipla ANDA Products into the United States would infringe at least one claim of the '211 Patent. 49. On information and belief, Defendants intend to sell the Cipla ANDA Products with a label that includes instructions to administer 50 mg, 100 mg, 150 mg, and 200 mg abemaciclib tablets in a manner that will infringe at least one claim of the '211 Patent. 50. On information and belief, the Cipla ANDA Products, when offered for sale, sold, and/or imported, and when used as directed, e.g., by physicians, pharmacists, healthcare professionals, and/or patients according to the label, would be used in a manner that would directly infringe at least one claim of the '211 Patent, either literally or under the doctrine of equivalents. 51. On information and belief, Defendants know and intend that physicians, pharmacists, healthcare professionals, and/or patients would prescribe, administer, and/or use the Cipla ANDA Products according to the instructions provided in the label. Defendants would therefore induce infringement of at least one claim of the '211 Patent with the requisite intent under 35 U.S.C. § 271(b). 52. On information and belief, Defendants know and intend that the use of the Cipla ANDA Products constitutes a material part of at least one claim of the '211 Patent; Defendants know that the Cipla ANDA Products are especially made or adapted for use in infringing at least one claim of the '211 Patent, either literally or under the doctrine of equivalents; and the Cipla ANDA Products are not staple articles of commerce or commodities of commerce suitable for substantial noninfringing use. Defendants would therefore contribute to infringement of at least one claim of the '211 Patent under 35 U.S.C. § 271(c). 11 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 12 of 13 PageID #: 12 53. Lilly will be substantially and irreparably harmed if Defendants are not enjoined from infringing the '211 Patent. 54. This is an exceptional case within the meaning of 35 U.S.C. § 285, which warrants reimbursement of Lilly's reasonable attorney fees. PRAYER FOR RELIEF WHEREFORE, Plaintiff Eli Lilly and Company respectfully requests that the Court enter judgment against Defendants and for the following relief: a. A Judgment be entered that Defendants have infringed at least one claim of the '211 Patent

by submitting the Cipla ANDA; b. A Judgment be entered that this case is exceptional, and that Lilly is entitled to its reasonable attorneys' fees pursuant to 35 U.S.C. § 285; c. That Defendants, their officers, agents, partners, servants, employees, and those persons acting in active concert or participation with all or any of them be preliminarily and permanently enjoined from: (i) engaging in the commercial manufacture, use, offer to sell, or sale within the United States, or importation into the United States, of drugs or methods of administering drugs claimed in the '211 Patent, and (ii) seeking, obtaining or maintaining approval of ANDAs whose products would infringe the '211 Patent until the expiration of the '211 Patent or such other later time as the Court may determine; d. A Judgment ordering that pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of any approval of the Cipla ANDA under § 505(j) of the Federal Food, Drug and Cosmetic Act (21 U.S.C. § 355(j)) shall not be earlier than the expiration date of the '211 Patent, including any extensions; 12 Case 1:26-cv-00691-UNA Document 1 Filed 06/12/26 Page 13 of 13 PageID #: 13 e. That Lilly be awarded monetary relief if Defendants commercially use, offer to sell, or sell their proposed generic versions of Verzenio® or any other product that infringes or induces or contributes to the infringement of the '211 Patent, within the United States, prior to the expiration of the '211 Patent, including any extensions, and that any such monetary relief be awarded to Lilly with prejudgment interest; f. Costs and expenses in this action; and g. Such other and further relief as the Court deems just and appropriate. Dated: June 12, 2026 OF COUNSEL: Jeanna M. Wacker Ashley L.B. Ross Mara L. Greenberg KIRKLAND & ELLIS LLP 601 Lexington Avenue New York, NY 10022 (212) 446-4800 jeanna.wacker@kirkland.com ashley.ross@kirkland.com mara.greenberg@kirkland.com MC CARTER & ENGLISH, LLP /s/ Daniel M. Silver Daniel M. Silver (#4758) Alexandra M. Joyce (#6423) Renaissance Centre 405 N. King Street, 8th Floor Wilmington, Delaware 19801 (302) 984-6300 dsilver@mccarter.com ajoyce@mccarter.com Attorneys for Plaintiff Eli Lilly and Company